

Section 2 in The Medicinal And Toilet Preparations (Excise Duties) Act, 1955

2. Definitions .-In this Act, unless the context otherwise requires,-

(a)"alcohol" means ethyl alcohol of any strength and purity having the chemical composition C_2H_5OH ;(aa)["coca derivative" means-(i)crude cocaine, that is, any extract of coca leaf which can be used, directly or indirectly, for the manufacture of cocaine;(i)the leaf and young twigs of any coca plant, that is, of the *Erythroxylon coca* (Lamk.) and the *Erythroxylon-novo-granatense* (Hiern.) and their varieties, and of any other species of this genus which the Central Government may, by notification in the Official Gazette, declare to be coca plants for the purposes of this Act; and(ii)any mixture thereof, with or without neutral materials;](ii)ecgonine, that is, laevo-ecgonine having the chemical formula $C_9H_{15}NO_3H_2O$, and all the derivatives of laevo-ecgonine from which it can be recovered; and(iii)cocaine, that is, methyl-benzoyl-laevo-ecgonine having the chemical formula $C_{17}H_{21}NO_4$, and its salts;(ab)"coca leaf" means-(b)"collecting Government" means the Central Government or, as the case may be, the State Government which is entitled to collect the duties levied under this Act;(bb)[derivative of opium" means-(i)medicinal opium, that is, opium which has undergone the processes necessary to adapt it for medicinal use;(ii)prepared opium, that is, any product of opium obtained by any series of operations designed to transform opium into an extract suitable for smoking, and the dross or other residue remaining after opium is smoked;(iii)morphine, that is, the principal alkaloid of opium having the chemical formula $C_{17}H_{19}NO_3$, and its salts, and its derivatives;](c)"dutiable goods" means the medicinal and toilet preparations specified in the Schedule as being subject to the duties of excise levied under this Act;(d)"excise officer" means an officer of the Excise Department of any State and includes any person empowered by the collecting Government to exercise all or any of the powers of an excise officer under this Act;(e)["Indian hemp" means-(i)the leaves, small stalks and flowering or fruiting tops of the Indian hemp plant (*Cannabis sativa* L.), including all forms known as bhang , siddhi or ganja ;(ii)charas , that is, the resin obtained from the Indian hemp plant, which has not been submitted to any manipulations other than those necessary for packing and transport;(iii)any mixture, with or without neutral materials, of any of the above forms of Indian hemp or any drink prepared therefrom; and(iv)any extract or tincture of any of the above forms of Indian hemp;](f)"manufacture" includes any process incidental or ancillary to the completion of the manufacture of any dutiable goods;(g)"medicinal preparation" includes all drugs which are a remedy or prescription prepared for internal or external use of human beings or animals and all substances intended to be used for or in the treatment, mitigation or prevention of disease in human beings or animals;(h)["narcotic drug" or "narcotic" means a substance which is coca leaf, or coca derivative, or opium, or derivative of opium, or Indian hemp and shall include any other substance, capable of causing or producing in human beings dependence, tolerance and withdrawal syndromes and which the Central Government may, by notification in the Official Gazette, declare to be a narcotic drug or narcotic;] [Substituted by Act 66 of 1976, Section 39, for Clause (h) (w.e.f. 27.5.1976).](i)["opium" means,-(1)the capsules of the poppy (*Papaver somniferum* L), whether in their original form or cut, crushed or powdered and whether or not juice has been extracted therefrom;(2)the spontaneously coagulated juice of such capsules which has not been submitted to any manipulation other than those necessary for packing

and transport; and (3) any mixture, with or without neutral materials, of any of the above forms of opium, and includes any derivative of opium; (j) "prescribed" means prescribed by rules made under this Act; (k) "toilet preparation" means any preparation which is intended for use in the toilet of the human body or in perfuming apparel of any description, or any substance intended to cleanse, improve or alter the complexion, skin, hair or teeth, and includes deodorants and perfumes. Levy And Collection Of Duties